

PANEL 01/12 - CONCEPT AND VOCABULARY

SCHEDULED AND TRIBAL AREAS - ASCII MASTER FLOW

- Part X uses differentiated governance for land, culture, voice and self-rule.
- Article 244(1): Fifth Schedule outside Assam, Meghalaya, Tripura, Mizoram.
- Article 244(2): Sixth Schedule tribal areas in those four States.
- Article 244A: Parliament may form an autonomous State within Assam.
- Scheduled Area status, tribal-area status and Article 342 ST status differ.
- Answer line: asymmetry serves substantive equality but remains reviewable.

FLOW CONNECTION:

START -> constitutional map
Panel 01 -> Panel 02

PANEL 02/12 - FIFTH SCHEDULE TERRITORY

SCHEDULED AND TRIBAL AREAS - ASCII MASTER FLOW

- Only territory covered by a Presidential paragraph 6 order is scheduled.
- Official criteria guide: tribal preponderance, compactness, viable unit, backwardness.
- Criteria do not self-execute; an order creates or changes legal status.
- The Schedule excludes the four Sixth Schedule States from its Article 244(1) field.
- Do not freeze district counts without a dated Presidential-order audit.
- Trap: an ST population does not automatically make an area Scheduled.

FLOW CONNECTION:

Panel 01 -> Panel 02
Panel 02 -> Panel 03

PANEL 03/12 - FIFTH EXECUTIVE CHAIN

SCHEDULED AND TRIBAL AREAS - ASCII MASTER FLOW

- State executive power continues in the Scheduled Area.
- Governor reports annually or whenever the President requires.
- Union executive power extends to directions on administration.
- No automatic Union takeover; no local body assumes total administration.
- Article 339 adds commission and essential-welfare-scheme direction routes.
- Article 275(1) adds constitutional grants; finance is not proof of devolution.

FLOW CONNECTION:

Panel 02 -> Panel 03
Panel 03 -> Panel 04

PANEL 04/12 - TAC, REGULATIONS AND AMENDMENT

SCHEDULED AND TRIBAL AREAS - ASCII MASTER FLOW

- TAC: not more than 20; about 3/4 ST Assembly representatives; shortfall rule.
- Function: advice on welfare/advancement matters referred by Governor.
- Governor may exclude/modify Acts and make peace-and-good-government regulations.
- Fields: tribal land transfer, land allotment and money-lending.
- Consult TAC where it exists; regulation needs Presidential assent.
- Paragraph 7: Parliament amends Fifth Schedule by ordinary law, not Article 368.

FLOW CONNECTION:

Panel 03 -> Panel 04
Panel 04 -> Panel 05

PANEL 05/12 - SIXTH TERRITORY AND INSTITUTIONS

SCHEDULED AND TRIBAL AREAS - ASCII MASTER FLOW

- Scope: Assam, Meghalaya, Tripura and Mizoram only.
- Governor organises/reorganises autonomous districts and regions.
- Different tribes within a district may receive autonomous regions.
- Ordinary council: up to 30; up to 4 nominated; remainder elected.
- Bodoland: up to 46 = 40 elected + 6 nominated; do not universalise.
- A constitutional ADC is not a statutory hill council or Article 371 committee.

FLOW CONNECTION:

Panel 04 -> Panel 05
Panel 05 -> Panel 06

PANEL 06/12 - ASSAM-SPECIFIC DEPTH AND ARTICLE 244A

SCHEDULED AND TRIBAL AREAS - ASCII MASTER FLOW

- Paragraph 3A: additional powers for Karbi Anglong and Dima Hasao/NCHAC.
- Paragraph 3B: enlarged subject allocation for Bodoland Territorial Council.
- Twenty-second Amendment 1969 inserted Article 244A for Assam.
- It may create a legislature, Council of Ministers or both.
- Existing councils are not automatically autonomous States.
- Trap: BTC != TAC != statutory council != Article 244A State.

FLOW CONNECTION:

Panel 05 -> Panel 06
Panel 06 -> Panel 07

PANEL 07/12 - COUNCIL POWERS

SCHEDULED AND TRIBAL AREAS - ASCII MASTER FLOW

- Legislative: land, non-reserved forests, water, shifting cultivation and custom.
- Ordinary council law has no effect until Governor assent.
- Executive: schools, dispensaries, markets, ferries, fisheries and roads.
- Judicial: village/council courts for specified tribal-party matters.
- Fiscal: land revenue, listed taxes and District/Regional Funds.
- Paragraph 10 licences non-tribal traders/money-lenders under bounded rules.

FLOW CONNECTION:

Panel 06 -> Panel 07
Panel 07 -> Panel 08

PANEL 08/12 - ROYALTIES, LAW FILTERS AND CHECKS

SCHEDULED AND TRIBAL AREAS - ASCII MASTER FLOW

- Paragraph 9: agreed mineral royalty share; Governor decides share disputes.
- Royalty != ownership, consent or clearance.
- Assam 12; Meghalaya 12A; Tripura 12AA; Mizoram 12B differ.
- Paragraph 14 commission examines administration and council-made law.
- Paragraph 15 permits reasoned suspension for safety/public order.
- Paragraph 16 supplies dissolution and temporary supersession/assumption routes.

FLOW CONNECTION:

Panel 07 -> Panel 08
Panel 08 -> Panel 09

SCHEDULED AND TRIBAL AREAS - ASCII MASTER FLOW

- Applies only to Fifth Schedule Scheduled Areas; not Sixth Schedule councils.
- Village may be habitation, hamlet or customary group of habitations.
- Approve plans; identify beneficiaries; certify utilisation.
- Consult for acquisition/R&R; prior recommendation for specified minor minerals.
- State law endows MFP, markets, credit, intoxicants, restoration and local control.
- Exact verb and institutional level decide the legal effect.

FLOW CONNECTION:

Panel 08 -> Panel 09

Panel 09 -> Panel 10

PANEL 10/12 - FRA AND CASE LAW

SCHEDULED AND TRIBAL AREAS - ASCII MASTER FLOW

- FRA: individual, community and CFR rights; Gram Sabha initiates claims.
- Section 5 connects rights with conservation duties.
- Samatha 1997: AP regulation invalidated impugned non-tribal private leases.
- Niyamgiri 2013: Gram Sabha findings on specified FRA/religious claims.
- MoEF retained final Stage-II decision; no universal veto.
- Chebrolu 2020: 100% teacher reservation invalid; equality remains.

FLOW CONNECTION:

Panel 09 -> Panel 10
Panel 10 -> Panel 11

PANEL 11/12 - TRAPS AND REFORM

SCHEDULED AND TRIBAL AREAS - ASCII MASTER FLOW

- Fifth regulation -> President assent; Sixth ordinary council law -> Governor assent.
- TAC advises; ADC legislates/administers/adjudicates/taxes within listed fields.
- PESA participation != FRA title != constitutional territorial status.
- Reform: public reports, TAC responses, PESA alignment and land/CFR records.
- Council autonomy needs staff, funds, audit, assent reasons and remedies.
- Protect women, smaller tribes, remote habitations and internal minorities.

FLOW CONNECTION:

Panel 10 -> Panel 11

Panel 11 -> Panel 12

PANEL 12/12 - ANSWER SPINE AND VERDICT

SCHEDULED AND TRIBAL AREAS - ASCII MASTER FLOW

- 1 Define territory and legal source.
- 2 Map Article 244, Schedule and statute.
- 3 Name actor, exact power/verb and assent route.
- 4 Add Samatha, Niyamgiri or Chebrolu with holding and limit.
- 5 Analyse land, culture, agency, capacity and accountability.
- 6 Conclude: protection must become accountable community self-government.

FLOW CONNECTION:

Panel 11 -> Panel 12
qualified conclusion